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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:20-cv-00627-NYW-MDB

Acosta v. Pueblo School District No. 60 et al
Assigned to: Judge Nina Y. Wang
Referred to: Magistrate Judge Maritza Dominguez Braswell
Case in other court: Pueblo County District Court, 2020CV30078
Cause: 42:1983 Civil Rights Act

Date Filed: 03/05/2020
Date Terminated: 03/17/2023
Jury Demand: Plaintiff
Nature of Suit: 442 Civil Rights: Jobs
Jurisdiction: Federal Question

Plaintiff**Monica Acosta**

represented by **Sharyn E. Dreyer**
Colorado Education Association
1500 Grant Street
Denver, CO 80203-1800
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LEAD ATTORNEY
ATTORNEY TO BE NOTICED

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TERMINATED: 10/13/2022

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V.

Defendant

Pueblo School District No. 60

represented by **David Matthew Strachan**
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ATTORNEY TO BE NOTICED

Defendant

Taylor Voss

*in his official capacity as President of the
Pueblo School District No. 60 Board of
Education
TERMINATED: 06/06/2022*

represented by **David Matthew Strachan**
(See above for address)
ATTORNEY TO BE NOTICED

Michael W. Schreiner
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Margaret Wright

*Dr., in her official capacity as Vice
President of the Pueblo School District No.
60 Board of Education
TERMINATED: 06/06/2022*

represented by **David Matthew Strachan**
(See above for address)
ATTORNEY TO BE NOTICED

Michael W. Schreiner
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Barbara Clementi

*in her official capacity as a member of the
Pueblo School District No. 60 Board of
Education
TERMINATED: 06/06/2022*

represented by **David Matthew Strachan**
(See above for address)
ATTORNEY TO BE NOTICED

Michael W. Schreiner
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Tommy Farrell

*in his official capacity as a member of the
Pueblo School District No. 60 Board of*

represented by **David Matthew Strachan**
(See above for address)
ATTORNEY TO BE NOTICED

*Education**TERMINATED: 06/06/2022*

Michael W. Schreiner
 (See above for address)
ATTORNEY TO BE NOTICED

Defendant**Dennis Maes**

*in his official capacity as a member of the
 Pueblo School District No. 60 Board of
 Education
 TERMINATED: 06/06/2022*

represented by **David Matthew Strachan**
 (See above for address)
ATTORNEY TO BE NOTICED

Michael W. Schreiner
 (See above for address)
ATTORNEY TO BE NOTICED

Defendant**Jonathan Dehn***in his individual capacity*

represented by **David Matthew Strachan**
 (See above for address)
ATTORNEY TO BE NOTICED

Michael W. Schreiner
 (See above for address)
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
03/05/2020	1	NOTICE OF REMOVAL by Pueblo School District No. 60 from Pueblo County District Court, Case Number 2020CV30078. (Filing fee \$ 400, Receipt Number 1082-7188824), filed by Pueblo School District No. 60. (Attachments: # 1 Exhibit Complaint and Jury Demand, # 2 Exhibit Waiver of Service)(Schreiner, Michael) (Entered: 03/05/2020)
03/05/2020	2	FIRST AND FINAL NOTICE TO ALL ATTORNEY(S) AND UNREPRESENTED PARTIES IN REMOVED, TRANSFERRED, OR OTHER CASES. To receive any further notice in a case removed or transferred to this court, or special matters including discovery disputes, bankruptcy appeals, or withdrawals of reference, Multi-district litigation (MDL), etc., all attorneys and unrepresented parties must enter an appearance under D.C.COLO.LAttyR 5(a). An attorney must be an active member of this court's bar and be in good standing in accordance with D.C.COLO.LAttyR 3. A waiver of the fee for bar admission may apply in limited situations. (Text Only Entry) (trvo,) (Entered: 03/06/2020)
03/05/2020	3	Case assigned to Judge Robert E. Blackburn and drawn to Magistrate Judge Kathleen M. Tafoya. Text Only Entry. (trvo,) (Entered: 03/06/2020)
03/05/2020	4	COMPLAINT and Jury Demand against Pueblo School District No. 60, filed by Monica Acosta.(trvo,) (Entered: 03/06/2020)
03/05/2020	5	Waiver and Acceptance of Service of Complaint upon Pueblo School District No. 60 on 03/02/2020. (trvo,) (Entered: 03/06/2020)
03/05/2020	6	Magistrate Judge consent form issued pursuant to 28 U.S.C. 636(c). (trvo,) (Entered: 03/06/2020)
03/06/2020	7	MEMORANDUM RETURNING CASE by Senior Judge Blackburn. This case is randomly reassigned to Magistrate Judge Kathleen M. Tafoya. All future pleadings should be designated as 20-cv-00627-KMT. (athom,) (Entered: 03/06/2020)

03/06/2020	8	Magistrate Judge consent form issued pursuant to D.C.COLO.LCivR 40.1, direct assignment of civil actions to full time magistrate judges. (athom,) (Entered: 03/06/2020)
03/09/2020	9	NOTICE of Entry of Appearance by Erik G. Bradberry on behalf of Monica AcostaAttorney Erik G. Bradberry added to party Monica Acosta(pty:pla) (Bradberry, Erik) (Entered: 03/09/2020)
03/09/2020	10	ORDER Setting Scheduling Conference for 4/27/2020 11:00 AM in Courtroom 101 (Colorado Springs) before Magistrate Judge Kathleen M. Tafoya. Consent Form due by 4/20/2020. By Magistrate Judge Kathleen M. Tafoya on 3/9/2020. (ksena) (Entered: 03/09/2020)
03/23/2020	11	MOTION for Extension of Time to File Answer or Otherwise Respond re 4 Complaint by Defendant Pueblo School District No. 60. (Attachments: # 1 Proposed Order (PDF Only)) (Schreiner, Michael) (Entered: 03/23/2020)
03/23/2020	12	MINUTE ORDER granting 11 Motion for Extension of Time to Answer or Otherwise Respond. Pueblo School District No. 60 answer due 3/27/2020. By Magistrate Judge Kathleen M. Tafoya on 3/23/20. Text Only Entry(kmtlc1) (Entered: 03/23/2020)
03/27/2020	13	Partial MOTION to Dismiss by Defendant Pueblo School District No. 60. (Schreiner, Michael) (Entered: 03/27/2020)
03/27/2020	14	ANSWER to 4 Complaint by Pueblo School District No. 60.(Schreiner, Michael) (Entered: 03/27/2020)
03/27/2020	15	NOTICE of Entry of Appearance by David Matthew Strachan on behalf of Pueblo School District No. 60Attorney David Matthew Strachan added to party Pueblo School District No. 60(pty:dft) (Strachan, David) (Entered: 03/27/2020)
03/30/2020	16	MINUTE ORDER: Due to the continuing complications caused by the spread of COVID-19 coronavirus, the Court has issued General Order 2020-3, which, among other things, reflects an effort by judicial officers to reschedule in-court hearings in civil cases through 5/1/2020. Accordingly, the Scheduling Conference set for 4/27/2020 is vacated but will not be reset at this time. The parties are still required to file their proposed Scheduling Order and their Magistrate Judge consent form, if applicable, on 4/20/2020 in accordance with 10 Order. By Magistrate Judge Kathleen M. Tafoya on 3/30/2020. Text Only Entry (kmtlc1) (Entered: 03/30/2020)
04/17/2020	17	NOTICE of Entry of Appearance by Charles F. Kaiser on behalf of Monica AcostaAttorney Charles F. Kaiser added to party Monica Acosta(pty:pla) (Kaiser, Charles) (Entered: 04/17/2020)
04/17/2020	18	NOTICE of Filing Amended Pleading <i>Complaint</i> by Plaintiff Monica Acosta (Attachments: # 1 Exhibit Exhibit 1 - Amended Complaint)(Bradberry, Erik) (Entered: 04/17/2020)
04/17/2020	19	AMENDED COMPLAINT <i>AND JURY DEMAND</i> against All Defendants, filed by Monica Acosta.(Bradberry, Erik) (Entered: 04/17/2020)
04/17/2020	20	RESPONSE to 13 Partial MOTION to Dismiss filed by Plaintiff Monica Acosta. (Bradberry, Erik) (Entered: 04/17/2020)
04/19/2020	21	ORDER denying as moot 13 Partial Motion to Dismiss, as it is directed at the now, non-operative complaint. By Magistrate Judge Kathleen M. Tafoya on 4/19/2020. Text Only Entry(kmtlc1) (Entered: 04/19/2020)
04/20/2020	22	Joint MOTION for Extension of Time to by Defendant Pueblo School District No. 60. (Attachments: # 1 Proposed Order (PDF Only))(Schreiner, Michael) (Entered: 04/20/2020)

		04/20/2020)
04/20/2020	23	MINUTE ORDER granting 22 Motion to Vacate and/or Reset Deadline to Submit Proposed Scheduling Order. The deadline will be reset by separate order. By Magistrate Judge Kathleen M. Tafoya on 4/20/2020. Text Only Entry(kmtlc1) (Entered: 04/20/2020)
04/20/2020	24	AMENDED ORDER SETTING Scheduling Conference for 6/9/2020 10:30 AM in Courtroom 101 (Colorado Springs) before Magistrate Judge Kathleen M. Tafoya. Consent Form due by 6/2/2020. By Magistrate Judge Kathleen M. Tafoya on 4/20/2020. (ksena) (Entered: 04/20/2020)
04/28/2020	25	Unopposed MOTION for Extension of Time to File Answer or Otherwise Respond re 19 Amended Complaint by Defendant Pueblo School District No. 60. (Attachments: # 1 Proposed Order (PDF Only) Proposed Order Granting Unopposed Motion for Extension of Time for Defendant Pueblo School District No. 60 to File Its Responsive Pleading to Plaintiff's Amended Complaint)(Schreiner, Michael) (Entered: 04/28/2020)
04/28/2020	26	MINUTE ORDER granting 25 Motion for Extension of Time to Answer or Otherwise Respond. Pueblo School District No. 60 answer due 5/22/2020. By Magistrate Judge Kathleen M. Tafoya on 4/28/2020. Text Only Entry(kmtlc1) (Entered: 04/28/2020)
05/04/2020	27	CONSENT to Jurisdiction of Magistrate Judge by Plaintiff Monica Acosta All parties do not consent.. (Bradberry, Erik) (Entered: 05/04/2020)
05/04/2020	28	CASE REASSIGNED pursuant to 27 Consent/Non-Consent to Jurisdiction of Magistrate Judge. All parties do not consent. This case is randomly reassigned to Judge Daniel D. Domenico. All future pleadings should be designated as 20-cv-00627-DDD. (Text Only Entry) (jgonz,) (Entered: 05/04/2020)
05/05/2020	29	ORDER REFERRING CASE to Magistrate Judge Kathleen M. Tafoya. Pursuant to 28 U.S.C. § 636(b)(1)(A) and (B) and Fed. R. Civ. P. 72(a) and (b), this case is referred to the assigned United States Magistrate Judge to (1) convene a scheduling conference under Fed. R. Civ. P. 16(b) and enter a scheduling order meeting the requirements of Local Civ. R. 16.2, (2) conduct such status conferences and issue such orders necessary for compliance with the scheduling order, including amendments or modifications of the scheduling order upon a showing of good cause, (3) hear and determine pretrial matters, including discovery and other non-dispositive motions, (4) conduct hearings, including evidentiary hearings, and submit proposed findings of fact and recommendations for rulings on dispositive motions, and (5) pursuant to Local Civ. R. 16.6 and at the discretion of the Magistrate Judge, convene such early neutral evaluation and/or settlement conferences and direct related procedures as may facilitate resolution of this case without the necessity of a motion or prior authorization of the undersigned. SO ORDERED by Judge Daniel D. Domenico on 5/5/2020. Text Only Entry (dddlc3,) (Entered: 05/05/2020)
05/07/2020	30	ORDER: Due to the continuing complications caused by the spread of COVID-19 coronavirus, the Court has issued General Orders 2020-3, 2020-6, and 2020-8, which, among other things, reflect an effort by judicial officers to reschedule hearings or to convert hearings to telephonic appearances and to reschedule civil and criminal trials through July 6, 2020. Accordingly, the Scheduling Conference set for June 9, 2020, is vacated but will not be reset at this time. The parties are still required to file their proposed Scheduling Order no later than June 2, 2020, in accordance with 24 Order. By Magistrate Judge Kathleen M. Tafoya on 5/7/2020. Text Only Entry (kmtlc1) (Entered: 05/07/2020)
05/08/2020	31	CONSENT to Jurisdiction of Magistrate Judge by Plaintiff Monica Acosta All parties do not consent.. (Bradberry, Erik) (Entered: 05/08/2020)

05/12/2020	32	WAIVER OF SERVICE Returned Executed by Monica Acosta. Margaret Wright waiver sent on 5/5/2020, answer due 7/6/2020. (Bradberry, Erik) (Entered: 05/12/2020)
05/12/2020	33	WAIVER OF SERVICE Returned Executed by Monica Acosta. TAYLOR VOSS waiver sent on 5/5/2020, answer due 7/6/2020. (Bradberry, Erik) (Entered: 05/12/2020)
05/12/2020	34	WAIVER OF SERVICE Returned Executed by Monica Acosta. Dennis Maes waiver sent on 5/5/2020, answer due 7/6/2020. (Bradberry, Erik) (Entered: 05/12/2020)
05/12/2020	35	WAIVER OF SERVICE Returned Executed by Monica Acosta. Tommy Farrell waiver sent on 5/5/2020, answer due 7/6/2020. (Bradberry, Erik) (Entered: 05/12/2020)
05/12/2020	36	WAIVER OF SERVICE Returned Executed by Monica Acosta. Jonathan Dehn waiver sent on 5/5/2020, answer due 7/6/2020. (Bradberry, Erik) (Entered: 05/12/2020)
05/12/2020	37	WAIVER OF SERVICE Returned Executed by Monica Acosta. Barbara Clementi waiver sent on 5/5/2020, answer due 7/6/2020. (Bradberry, Erik) (Entered: 05/12/2020)
05/22/2020	38	MOTION to Dismiss for Failure to State a Claim , MOTION to Dismiss for Lack of Jurisdiction by Defendants Barbara Clementi, Tommy Farrell, Dennis Maes, Pueblo School District No. 60, TAYLOR VOSS, Margaret Wright. (Schreiner, Michael) (Entered: 05/22/2020)
05/22/2020	39	<i>Defendant Pueblo School District No. 60's</i> ANSWER to 19 Amended Complaint by Pueblo School District No. 60.(Schreiner, Michael) (Entered: 05/22/2020)
06/01/2020	40	Unopposed MOTION for Extension of Time to <i>File Proposed Scheduling Order</i> by Defendants Barbara Clementi, Tommy Farrell, Dennis Maes, Pueblo School District No. 60, TAYLOR VOSS, Margaret Wright. (Attachments: # 1 Proposed Order (PDF Only) Proposed Order Granting Unopposed Motion for Extension of Time for Parties to File Proposed Scheduling Order)(Schreiner, Michael) (Entered: 06/01/2020)
06/01/2020	41	ORDER REFERRING MOTION: 40 Unopposed MOTION for Extension of Time to <i>File Proposed Scheduling Order</i> filed by Margaret Wright, Barbara Clementi, Pueblo School District No. 60, Dennis Maes, Tommy Farrell, TAYLOR VOSS. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Daniel D. Domenico on 6/1/2020. Text Only Entry (dddlc3,) (Entered: 06/01/2020)
06/01/2020	42	MINUTE ORDER granting 40 Motion for Extension of Time to File Proposed Scheduling Order. The Scheduling Conference and all related deadlines will be reset by separate order. By Magistrate Judge Kathleen M. Tafoya on 6/1/2020. Text Only Entry(kmtlc1) (Entered: 06/01/2020)
06/01/2020	43	AMENDED ORDER SETTING Scheduling Conference for 7/14/2020 10:45 AM in Courtroom 101 (Colorado Springs) before Magistrate Judge Kathleen M. Tafoya. By Magistrate Judge Kathleen M. Tafoya on 6/1/2020. (ksena) (Entered: 06/01/2020)
06/12/2020	44	BRIEF in Opposition to 38 MOTION to Dismiss for Failure to State a Claim MOTION to Dismiss for Lack of Jurisdiction filed by Plaintiff Monica Acosta. (Bradberry, Erik) (Entered: 06/12/2020)
06/24/2020	45	Unopposed MOTION for Leave to <i>Appear by Telephone at the July 14, 2020 Scheduling and Planning Conference</i> 43 Order by Defendants Barbara Clementi, Tommy Farrell, Dennis Maes, Pueblo School District No. 60, Taylor Voss, Margaret Wright. (Attachments: # 1 Proposed Order (PDF Only) Proposed Order Granting Defendants' Unopposed Motion for Leave to Appear by Telephone at the July 14, 2020 Scheduling and Planning Conference)(Schreiner, Michael) (Entered: 06/24/2020)

06/24/2020	46	ORDER REFERRING MOTION: 45 Unopposed MOTION for Leave to <i>Appear by Telephone at the July 14, 2020 Scheduling and Planning Conference</i> 43 Order filed by Margaret Wright, Taylor Voss, Barbara Clementi, Pueblo School District No. 60, Dennis Maes, Tommy Farrell. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Daniel D. Domenico on 6/24/2020. Text Only Entry (dddlc3,) (Entered: 06/24/2020)
06/25/2020	47	REPLY to Response to 38 MOTION to Dismiss for Failure to State a Claim MOTION to Dismiss for Lack of Jurisdiction Attorney David Matthew Strachan added to party Barbara Clementi(pty:dft), Attorney David Matthew Strachan added to party Tommy Farrell(pty:dft), Attorney David Matthew Strachan added to party Dennis Maes(pty:dft), Attorney David Matthew Strachan added to party Taylor Voss(pty:dft), Attorney David Matthew Strachan added to party Margaret Wright(pty:dft) filed by Defendants Barbara Clementi, Tommy Farrell, Dennis Maes, Pueblo School District No. 60, Taylor Voss, Margaret Wright. (Strachan, David) (Entered: 06/25/2020)
06/29/2020	48	MINUTE ORDER: Due to the continuing complications caused by the spread of COVID-19 coronavirus, the Court has issued General Orders 2020-3, 2020-6, 2020-8, and 2020-10, which, among other things, reflect an effort by judicial officers to reschedule hearings or to convert hearings to telephonic appearances and to reschedule civil and criminal trials through July 31, 2020. Accordingly, the Scheduling Conference set for July 14, 2020, is vacated but will not be reset at this time. The parties are still required to file their proposed Scheduling Order no later than July 7, 2020, in accordance with 43 Order. The 45 Motion for Leave is denied as moot. By Magistrate Judge Kathleen M. Tafoya on 6/29/2020. Text Only Entry(kmtlc1) (Entered: 06/29/2020)
07/06/2020	49	MOTION for Joinder re 38 MOTION to Dismiss for Failure to State a Claim MOTION to Dismiss for Lack of Jurisdiction , 47 Reply to Response to Motion,, by Defendant Jonathan Dehn. (Schreiner, Michael) (Entered: 07/06/2020)
07/06/2020	50	ANSWER to 19 Amended Complaint by Jonathan Dehn.(Schreiner, Michael) (Entered: 07/06/2020)
07/07/2020	51	Proposed Scheduling Order by Plaintiff Monica Acosta. (Bradberry, Erik) (Entered: 07/07/2020)
07/08/2020	52	ORDER Regarding Entry of Scheduling Order. By Magistrate Judge Kathleen M. Tafoya on 7/8/2020. (ksena) (Entered: 07/08/2020)
07/08/2020	53	SCHEDULING ORDER: Discovery due by 4/2/2021. Dispositive Motions due by 5/3/2021. By Magistrate Judge Kathleen M. Tafoya on 7/8/2020. (ksena) (Entered: 07/08/2020)
07/27/2020	54	RESPONSE to 38 MOTION to Dismiss for Failure to State a Claim MOTION to Dismiss for Lack of Jurisdiction , 49 MOTION for Joinder re 38 MOTION to Dismiss for Failure to State a Claim MOTION to Dismiss for Lack of Jurisdiction , 47 Reply to Response to Motion,, filed by Plaintiff Monica Acosta. (Bradberry, Erik) (Entered: 07/27/2020)
08/04/2020	55	REPLY to Response to 49 MOTION for Joinder re 38 MOTION to Dismiss for Failure to State a Claim MOTION to Dismiss for Lack of Jurisdiction , 47 Reply to Response to Motion,, filed by Defendant Jonathan Dehn. (Schreiner, Michael) (Entered: 08/04/2020)
02/11/2021	56	Joint MOTION to Amend/Correct/Modify <i>Scheduling Order</i> by Plaintiff Monica Acosta. (Bradberry, Erik) (Entered: 02/11/2021)
02/12/2021	57	ORDER REFERRING MOTION: 56 Joint MOTION to Amend/Correct/Modify <i>Scheduling Order</i> filed by Monica Acosta. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Daniel D. Domenico on 2/12/2021. Text Only Entry (dddlc3,) (Entered: 02/12/2021)

02/16/2021	58	MINUTE ORDER granting 56 Motion to Amend Scheduling Order. The deadline for serving interrogatories, requests for production of documents, and requests for admission is extended to April 28, 2021; the discovery cut-off date is extended to May 28, 2021; the the deadline for filing dispositive motions is extended to June 28, 2021. By Magistrate Judge Kathleen M. Tafoya on 2/16/2021. Text Only Entry(kmtlc1) (Entered: 02/16/2021)
04/30/2021	59	Unopposed MOTION to Amend/Correct/Modify 53 Scheduling Order by Defendants Barbara Clementi, Jonathan Dehn, Tommy Farrell, Dennis Maes, Pueblo School District No. 60, Taylor Voss, Margaret Wright. (Schreiner, Michael) (Entered: 04/30/2021)
04/30/2021	60	ORDER REFERRING MOTION: 59 Unopposed MOTION to Amend/Correct/Modify 53 Scheduling Order filed by Margaret Wright, Taylor Voss, Barbara Clementi, Pueblo School District No. 60, Jonathan Dehn, Dennis Maes, Tommy Farrell. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Daniel D. Domenico on 4/30/2021. Text Only Entry (dddlc3,) (Entered: 04/30/2021)
04/30/2021	61	MINUTE ORDER granting 59 Motion to Amend Scheduling Order. The discovery cutoff is extended to 6/11/2021; the dispositive motions deadline is extended to 7/8/2021. By Magistrate Judge Kathleen M. Tafoya on 4/30/21. Text Only Entry(kmtlc1) (Entered: 04/30/2021)
06/04/2021	62	MOTION to Amend/Correct/Modify 53 Scheduling Order <i>to Extend or Reopen the Discovery Cut-Off for a Limited Purpose</i> by Plaintiff Monica Acosta. (Kaiser, Charles) (Entered: 06/04/2021)
06/04/2021	63	ORDER REFERRING MOTION: 62 MOTION to Amend/Correct/Modify 53 Scheduling Order <i>to Extend or Reopen the Discovery Cut-Off for a Limited Purpose</i> filed by Monica Acosta. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge Daniel D. Domenico on 6/4/2021. Text Only Entry (dddlc3,) (Entered: 06/04/2021)
06/04/2021	64	MINUTE ORDER: On or before June 11, 2021, Defendant shall respond to 62 MOTION to Amend Scheduling Order or Reopen the Discovery Cut-Off for a Limited Purpose. By Magistrate Judge Kathleen M. Tafoya on 6/4/21. Text Only Entry (kmtlc1) (Entered: 06/04/2021)
06/11/2021	65	RESPONSE to 62 MOTION to Amend/Correct/Modify 53 Scheduling Order <i>to Extend or Reopen the Discovery Cut-Off for a Limited Purpose</i> filed by Defendants Barbara Clementi, Jonathan Dehn, Tommy Farrell, Dennis Maes, Pueblo School District No. 60, Taylor Voss, Margaret Wright. (Schreiner, Michael) (Entered: 06/11/2021)
06/22/2021	66	ORDER denying 62 Motion to Amend the Scheduling Order to Extend or Reopen the Discovery Cut-Off for a Limited Purpose, by Magistrate Judge Kathleen M. Tafoya on 6/22/2021.(jgonz,) (Entered: 06/22/2021)
07/08/2021	67	MOTION for Summary Judgment by Defendants Barbara Clementi, Jonathan Dehn, Tommy Farrell, Dennis Maes, Pueblo School District No. 60, Taylor Voss, Margaret Wright. (Attachments: # 1 Exhibit A DeCesaro Declaration, # 2 Exhibit B Dehn Declaration, # 3 Exhibit C CBA Amnesty Clause, # 4 Exhibit D Horner Declaration, # 5 Exhibit E Acosta Depo transcript, # 6 Exhibit F Crawford Declaration, # 7 Exhibit G DeCesaro Depo transcript)(Schreiner, Michael) (Entered: 07/08/2021)
07/27/2021	68	Unopposed MOTION for Extension of Time to File Response/Reply as to 67 MOTION for Summary Judgment by Plaintiff Monica Acosta. (Bradberry, Erik) (Entered: 07/27/2021)
07/28/2021	69	ORDER granting 68 Motion for Extension of Time to File Response/Reply. Plaintiff's response is due on or before August 12, 2021. SO ORDERED by Judge Daniel D. Domenico on 7/28/2021. Text Only Entry(dddlc3,) (Entered: 07/28/2021)

08/12/2021	70	RESPONSE to 67 MOTION for Summary Judgment filed by Plaintiff Monica Acosta. (Attachments: # 1 Exhibit Exhibit A - Deposition of Jonathan Dehn, # 2 Exhibit Exhibit B - Deposition of Lisa Horton, # 3 Exhibit Exhibit C - Declaration of Monica Acosta, # 4 Exhibit Exhibit D - Deposition of Monica Acosta, # 5 Exhibit Exhibit E - Declaration of Donna Raught, # 6 Exhibit Exhibit F - Factfinder Report, # 7 Exhibit Exhibit G - Deposition of Eric DeCesaro, # 8 Exhibit Exhibit H - Email, # 9 Exhibit Exhibit I - Deposition Exhibit 19)(Kaiser, Charles) (Entered: 08/12/2021)
08/13/2021	71	Unopposed MOTION for Extension of Time to File Response/Reply as to 67 MOTION for Summary Judgment by Defendants Barbara Clementi, Jonathan Dehn, Tommy Farrell, Dennis Maes, Pueblo School District No. 60, Taylor Voss, Margaret Wright. (Schreiner, Michael) (Entered: 08/13/2021)
08/16/2021	72	ORDER GRANTING 71 Motion for Extension of Time to File Response/Reply. Defendants' Reply in Support of their Motion for Summary Judgment is due on or before September 9, 2021. SO ORDERED by Judge Daniel D. Domenico on 8/16/2021. Text Only Entry(ddd1c3,) (Entered: 08/16/2021)
08/31/2021	73	Unopposed MOTION for Leave to File Excess Pages / <i>File Reply in Support of Motion for Summary Judgment In Excess of 2700 Word Limit</i> by Defendants Barbara Clementi, Jonathan Dehn, Tommy Farrell, Dennis Maes, Pueblo School District No. 60, Taylor Voss, Margaret Wright. (Schreiner, Michael) (Entered: 08/31/2021)
09/09/2021	74	ORDER granting 73 Unopposed Motion for Leave to File Excess Pages. Defendants' Reply in support of the Motion for Summary Judgment may not exceed 3,200 words. SO ORDERED by Judge Daniel D. Domenico on 9/9/2021. Text Only Entry(ddd1c4,) (Entered: 09/09/2021)
09/09/2021	75	REPLY to Response to 67 MOTION for Summary Judgment Attorney David Matthew Strachan added to party Jonathan Dehn(pty:dft) filed by Defendants Barbara Clementi, Jonathan Dehn, Tommy Farrell, Dennis Maes, Pueblo School District No. 60, Taylor Voss, Margaret Wright. (Attachments: # 1 Exhibit H Supplemental Acosta Depo excerpts, # 2 Exhibit I Arbitrator's Report, # 3 Exhibit J Ptf's Rule 26(a)(1) Disclosures, # 4 Exhibit K Horton Depo Excerpts)(Strachan, David) (Entered: 09/09/2021)
02/01/2022	76	REASSIGNING MAGISTRATE JUDGE. Due to Magistrate Judge Tafoya's retirement, this case is reassigned to Magistrate Judge Kristen L. Mix as the referral judge. All future pleadings should reference Magistrate Judge Kristen L. Mix at the end of the civil action number (such as 20-cv-00627-DDD-KLM). Unless otherwise ordered, the dates and times for all scheduled matters will be maintained. (Text only entry). (alave,) (alave,) (Entered: 02/01/2022)
06/06/2022	77	ORDER. The District's Motion for Summary Judgment (Doc. 67) is GRANTED IN PART AND DENIED IN PART. The District's Motion to Dismiss (Doc. 38) and Mr. Dehn's Motion for Joinder re Motion to Dismiss (Doc. 49) are DENIED AS MOOT. By Judge Daniel D. Domenico on 06/06/2022. (athom,) (Entered: 06/06/2022)
06/09/2022	78	MINUTE ORDER. The dispositive motions deadline has passed, and there are no pending motions. To facilitate the Court's just, speedy, and inexpensive determination of this action, on or before June 23, 2022 the parties must file a Joint Status Report not to exceed 1,400 words, identifying the following: (1) the nature of the dispute between the parties; (2) the prospects for settlement; (3) three mutually agreeable alternative dates for trial to commence in December 2022, January 2023, or March 2023 and the anticipated length of trial; and (4) any other issues the parties wish to bring to the Court's attention. SO ORDERED by Judge Daniel D. Domenico on 6/9/2022. Text Only Entry (ddd1c4) (Entered: 06/09/2022)

06/09/2022	79	Utility Setting/Resetting Deadlines/Hearings: Joint Status Report due by 6/23/2022 pursuant to 78 Minute Order. Text Only Entry (athom,) (Entered: 06/10/2022)
06/23/2022	80	Joint STATUS REPORT by Plaintiff Monica Acosta. (Bradberry, Erik) (Entered: 06/23/2022)
06/24/2022	81	TRIAL PREPARATION ORDER: Final Pretrial Conference set for 2/21/2023 01:30 PM in Courtroom A1002 before Judge Daniel D. Domenico. 5-Day Jury Trial set for 3/13/2023, at 08:30 AM, in Courtroom A1002 before Judge Daniel D. Domenico. Trial Preparation Conference set for 3/9/2023 at 01:30 PM in Courtroom A1002 before Judge Daniel D. Domenico. Entered by Judge Daniel D. Domenico on 6/24/2022. (rkeec) (Entered: 06/24/2022)
07/07/2022	82	REASSIGNING MAGISTRATE JUDGE. This action is reassigned to Magistrate Judge Maritza Dominguez Braswell, upon her appointment. All future pleadings should reference Magistrate Judge Dominguez Braswell at the end of the civil action number as such: 20-cv-00627-DDD-MDB . Unless otherwise ordered, the dates and times for all previously scheduled matters will be maintained and will now be handled by Magistrate Judge Dominguez Braswell in Suite 100. Her chambers are located at 212 North Wasatch Avenue, Suite 100, Colorado Springs, CO 80903. Her telephone number is 719-575-0328. (Text Only Entry) (trvo,) (Entered: 07/07/2022)
07/26/2022	83	Joint STATUS REPORT by Plaintiff Monica Acosta. (Bradberry, Erik) (Entered: 07/26/2022)
08/05/2022	84	REASSIGNMENT OF JUDGE. This action is reassigned to Judge Nina Y. Wang upon her appointment as United States District Judge. Unless otherwise ordered, the dates and times for all previously scheduled matters will be maintained. Judge Wang is located in Courtroom 502 in the Alfred A. Arraj Courthouse and her chambers is in A-532. Her telephone number is (303) 335-2600. All future pleadings should be designated as 20-cv-00627-NYW. (Text only entry) (cmadr,) (Entered: 08/05/2022)
08/09/2022	85	MINUTE ORDER: In the 83 Joint Status Report, the Parties represent that they are scheduled for a mediation on November 3, 2022. It is hereby ORDERED that no later than 11/10/2022 , the Parties shall file another Status Report informing the court of the resolution of the mediation and the status of this case. By Judge Nina Y. Wang on 08/09/2022. Text Only Entry (nywlc2,) (Entered: 08/09/2022)
10/13/2022	86	Utility Setting Hearings pursuant to 84 : Final Pretrial Conference set for 2/21/2023 01:30 PM in Courtroom A 502 before Judge Nina Y. Wang . Trial Preparation Conference set for 3/9/2023 at 01:30 PM in Courtroom A 502 before Judge Nina Y. Wang . Five-day Jury Trial set to commence 3/13/2023 in Courtroom A 502 before Judge Nina Y. Wang . Counsel for Parties should be available to the Court at 8:30 a.m. on the first day of trial to address any last-minute matters. Text Only Entry (athom,) (Entered: 10/13/2022)
10/13/2022	87	NOTICE of <i>Withdrawal</i> by Plaintiff Monica Acosta (Kaiser, Charles) (Entered: 10/13/2022)
10/13/2022	88	MINUTE ORDER: This matter is before the Court on the 87 Notice of Withdrawal of Counsel, which the Court construes as a Motion to Withdraw as Counsel. <i>See</i> D.C.COLO.LAttyR 5(b) ("An attorney who has filed an Entry of Appearance or an Entry of Appearance to Provide Limited Representation or has appeared otherwise in a case may seek to withdraw <u>on motion</u> showing good cause.") (emphasis added). The Motion to Withdraw is GRANTED. Attorney Charles F. Kaiser's representation of Plaintiff is hereby terminated in this matter. By Judge Nina Y. Wang on 10/13/2022. Text Only Entry(nywlc2,) (Entered: 10/13/2022)

11/07/2022	89	STATUS REPORT by Plaintiff Monica Acosta. (Bradberry, Erik) (Entered: 11/07/2022)
11/08/2022	90	MINUTE ORDER. The Final Pretrial Conference is RE-SET to January 17, 2023 at 10:30 AM in Courtroom A-502 before Judge Nina Y. Wang. The Parties shall submit their proposed Final Pretrial Order on or before January 10, 2023 . The Trial Preparation Conference is RE-SET to February 21, 2023 at 1:30 PM in Courtroom A-502 before Judge Nina Y. Wang. Each side may file one omnibus motion in limine, not to exceed fifteen pages. The deadline to file motions in limine is RE-SET to January 3, 2023 . Responses shall be filed no later than January 17, 2023 . <u>No replies will be permitted absent leave of Court and good cause shown.</u> The deadline to file trial briefs is RE-SET to January 20, 2023 . If the Parties anticipate the use of deposition testimony at trial, the Party offering such testimony shall designate it and indicate whether the testimony will be read or presented from a video recording no later than January 31, 2023 . Counter-designations are due February 7, 2023 . The deadline to submit proposed jury instructions is RE-SET to February 7, 2023 . The deadlines to proposed <i>voir dire</i> questions and witness and exhibit lists REMAIN SET at February 14, 2023 . The deadline to submit exhibit notebooks is RE-SET to February 14, 2023 . The Parties shall familiarize themselves with the undersigned's Civil Practice Standards regarding all trial and trial preparation matters. Should the Parties have any questions about trial matters, the Parties shall <u>jointly</u> submit any questions or issues they wish to be addressed at the Trial Preparation Conference to Wang_Chambers@cod.uscourts.gov no later than February 16, 2023 . By Judge Nina Y. Wang on 11/8/2022. (trvo,) (Entered: 11/08/2022)
01/03/2023	91	MOTION in Limine by Defendants Jonathan Dehn, Pueblo School District No. 60. (Attachments: # 1 Exhibit A Plaintiff's 26(a)(2) Expert Disclosures, # 2 Exhibit B Plaintiff's Responses to Interrogatories 4-6, # 3 Exhibit C Plaintiff's Deposition transcript, # 4 Exhibit D Rodriguez, Julianne deposition transcript, # 5 Exhibit E Anderson, Jennifer deposition transcript, # 6 Exhibit F Plaintiff's First Supplemental Disclosures, # 7 Exhibit H Report and Recommendations of the Fact Finder ECF 70-6)(Strachan, David) (Entered: 01/03/2023)
01/03/2023	92	RESTRICTED DOCUMENT - Level 1: Exhibit G to 91 MOTION in Limine by Defendants Jonathan Dehn, Pueblo School District No. 60.. (Strachan, David) Modified on 1/5/2023 to add title and linkage. (sphil,). (Entered: 01/03/2023)
01/03/2023	93	MOTION in Limine by Plaintiff Monica Acosta. (Attachments: # 1 Exhibit Arbitrator's Decision)(Bradberry, Erik) (Entered: 01/03/2023)
01/10/2023	94	Proposed Pretrial Order by Plaintiff Monica Acosta. (Attachments: # 1 Exhibit Exhibit 1, # 2 Exhibit Exhibit 2, # 3 Exhibit Exhibit 3)(Bradberry, Erik) (Entered: 01/10/2023)
01/10/2023	95	RESTRICTED DOCUMENT - Level 1: by Plaintiff Monica Acosta.. (Bradberry, Erik) (Entered: 01/10/2023)
01/10/2023	98	Unopposed Motion to Restrict Access to ECF No. 92 Under Level 1 Restriction by Plaintiff Monica Acosta. (Public entry for Restricted Document 95 filed 01/10/2023) Text only entry. (sdunb,) (Entered: 01/11/2023)
01/11/2023	96	DISREGARD: FILED IN INCORRECT CASE - MINUTE ORDER: A telephonic Status Conference is hereby SET for 1/12/2023 at 02:30 PM before Judge Nina Y. Wang. The Parties shall participate using the following dial-in information: 888-363-4749; Access Code: 5738976# . By Judge Nina Y. Wang on 01/11/2023. Text Only Entry (nywlc2,) Modified on 1/11/2023 to add "disregard" per chamber's request (sdunb,). (Entered: 01/11/2023)
01/11/2023	97	NOTICE of Entry of Appearance by Erik G. Bradberry on behalf of Monica Acosta (Bradberry, Erik) (Entered: 01/11/2023)

01/11/2023	99	MEMORANDUM regarding 98 MOTION for Leave to Restrict filed by Monica Acosta. Motion referred to Magistrate Judge Maritza Dominguez Braswell By Judge Nina Y. Wang on 01/11/2023. Text Only Entry (nywlc2,) (Entered: 01/11/2023)
01/11/2023	100	MINUTE ORDER: The Minute Order entered on January 11, 2023 setting a Status Conference for January 12, 2023 was inadvertently docketed in the wrong case. Accordingly, the Status Conference set for January 12, 2023 is hereby VACATED . By Judge Nina Y. Wang on 01/11/2023. Text Only Entry (nywlc2,) (Entered: 01/11/2023)
01/12/2023	101	MOTION to Withdraw as Attorney by Plaintiff Monica Acosta. (Bradberry, Erik) (Entered: 01/12/2023)
01/12/2023	102	MOTION for Extension of Time to by Plaintiff Monica Acosta. (Attachments: # 1 Proposed Order (PDF Only))(Gibson, Michelle) (Entered: 01/12/2023)
01/12/2023	103	MINUTE ORDER granting the 101 Motion to Withdraw as Attorney. Attorney Erik G. Bradberry is hereby terminated from his representation of Plaintiff in this matter. By Judge Nina Y. Wang on 01/12/2023. Text Only Entry(nywlc2,) (Entered: 01/12/2023)
01/12/2023	104	MINUTE ORDER: The 102 Unopposed Motion for Extension of Time to File Responses to Motions in Limine and Trial Briefs is GRANTED . Responses to the pending Motions in Limine are due 01/24/2023 . Trial briefs are due 01/27/2023 . By Judge Nina Y. Wang on 01/12/2023. Text Only Entry(nywlc2,) (Entered: 01/12/2023)
01/17/2023	105	Exhibits in Support of 94 Proposed Pretrial Order - <i>Defendants' Witness List</i> by Defendants Jonathan Dehn, Pueblo School District No. 60. (Schreiner, Michael) (Entered: 01/17/2023)
01/17/2023	107	COURTROOM MINUTES/MINUTE ORDER for Final Pretrial Conference held before Judge Nina Y. Wang on 1/17/2023. Defendants shall file a witness list with the estimated dates and length of testimony. Parties shall file a Joint Exhibit List. Final Pretrial Order is approved and filed with the corrections made of record. A five-day Jury Trial is set to begin 3/13/2023 at 8:30 a.m. A Trial Preparation Conference is set for 2/21/2023 at 1:30 p.m., both before Judge Nina Y. Wang in Courtroom A-502. Court Reporter: Darlene Martinez. (ebuch) (Entered: 01/18/2023)
01/17/2023	108	FINAL PRETRIAL ORDER. By Judge Nina Y. Wang on 1/17/2023. (Attachments: # 1 Exhibit 1 - Plaintiff's Witness List, # 2 Exhibit 2 - Plaintiff's Exhibit List, # 3 Exhibit 3 - Defendants' Exhibit List) (trvo,) (Main Document 108 replaced on 1/19/2023) (ebuch,). (Entered: 01/18/2023)
01/18/2023	106	MINUTE ORDER granting 98 Unopposed Motion to Restrict Access to ECF No. 92 Under Level 1 Restriction. The Clerk is directed to maintain the 92 Exhibit G to the Motion in Limine UNDER RESTRICTION at LEVEL 1. SO ORDERED by Magistrate Judge Maritza Dominguez Braswell on 1/18/2023. Text Only Entry(mdblc1) (Entered: 01/18/2023)
01/24/2023	109	RESPONSE to 91 MOTION in Limine filed by Plaintiff Monica Acosta. (Gibson, Michelle) (Entered: 01/24/2023)
01/24/2023	110	RESPONSE to 93 MOTION in Limine filed by Defendants Jonathan Dehn, Pueblo School District No. 60. (Attachments: # 1 Exhibit A Plaintiffs' Response to Motion in Limine, # 2 Exhibit B Order Denying Motion in Limine)(Strachan, David) (Entered: 01/24/2023)
01/27/2023	111	BRIEF <i>Plaintiff's Trial Brief</i> by Plaintiff Monica Acosta. (Gibson, Michelle) (Entered: 01/27/2023)

01/27/2023	112	TRIAL BRIEF by Defendants Jonathan Dehn, Pueblo School District No. 60. (Attachments: # 1 Exhibit A Plaintiff's Responses to ROG 15, 17, # 2 Exhibit B Dehn's depo)(Strachan, David) (Entered: 01/27/2023)
01/31/2023	113	DESIGNATION OF DEPOSITION TESTIMONY by Plaintiff Monica Acosta. (Gibson, Michelle) (Entered: 01/31/2023)
02/07/2023	114	Proposed Jury Instructions <i>Stipulated Jury Instructions</i> by Plaintiff Monica Acosta. (Gibson, Michelle) (Entered: 02/07/2023)
02/07/2023	115	Proposed Verdict Form <i>Plaintiff's Tendered Jury Verdict Form</i> by Plaintiff Monica Acosta. (Gibson, Michelle) (Entered: 02/07/2023)
02/07/2023	116	Proposed Verdict Form by Defendants Jonathan Dehn, Pueblo School District No. 60. (Strachan, David) (Entered: 02/07/2023)
02/07/2023	117	Proposed Jury Instructions <i>Opposed by Plaintiff</i> by Defendants Jonathan Dehn, Pueblo School District No. 60. (Strachan, David) (Entered: 02/07/2023)
02/07/2023	118	Proposed Jury Instructions <i>Plaintiff's Proposed Disputed Jury Instructions</i> by Plaintiff Monica Acosta. (Gibson, Michelle) (Entered: 02/07/2023)
02/07/2023	119	DESIGNATION OF DEPOSITION TESTIMONY - <i>Counter Designation Testimony</i> by Defendants Jonathan Dehn, Pueblo School District No. 60. (Strachan, David) (Entered: 02/07/2023)
02/07/2023	120	DESIGNATION OF DEPOSITION TESTIMONY - <i>Amended Designation of Counter Designation Testimony</i> by Defendants Jonathan Dehn, Pueblo School District No. 60. (Strachan, David) (Entered: 02/07/2023)
02/07/2023	121	Proposed Jury Instructions <i>Contested Jury Instructions Redlined by Parties</i> by Plaintiff Monica Acosta. (Gibson, Michelle) (Entered: 02/07/2023)
02/08/2023	122	Proposed Jury Instructions <i>Plaintiff's Amended Proposed Disputed Jury Instructions</i> by Plaintiff Monica Acosta. (Gibson, Michelle) (Entered: 02/08/2023)
02/08/2023	123	Proposed Jury Instructions <i>Amended Contested Jury Instructions</i> by Plaintiff Monica Acosta. (Gibson, Michelle) (Entered: 02/08/2023)
02/10/2023	124	MINUTE ORDER: It is ORDERED that the Parties shall review the Court's attached proposed preliminary jury instructions and be prepared to discuss any objections thereto, or any request that an instruction be moved from the preliminary jury instructions given prior to opening statements to the final jury instructions given after the close of evidence (or vice versa), at the February 21, 2023 Trial Preparation Conference. Should the Parties have any objections, it is ORDERED that the Parties shall meet and confer with respect to those objections and any proposed alterations no later than February 17, 2023 . The Parties shall attempt to stipulate to as many preliminary jury instructions as possible. By Judge Nina Y. Wang on 02/10/2023. (nywlc2,) (Entered: 02/10/2023)
02/14/2023	125	Witness List <i>Plaintiff's Witness List</i> by Plaintiff Monica Acosta. (Gibson, Michelle) (Entered: 02/14/2023)
02/14/2023	126	Exhibit List <i>Parties' Joint Exhibit List</i> by Plaintiff Monica Acosta. (Gibson, Michelle) (Entered: 02/14/2023)
02/14/2023	127	Witness List by Defendants Jonathan Dehn, Pueblo School District No. 60. (Schreiner, Michael) (Entered: 02/14/2023)
02/21/2023	128	COURTROOM MINUTES/MINUTE ORDER for Trial Preparation Conference held before Judge Nina Y. Wang on 2/21/2023. Granting in part and denying in part 91

		Defendants' Omnibus Motion in Limine. Granting 93 Plaintiff's Motion in Limine. In light of the lack of objections, the Preliminary Jury Instructions are deemed stipulated. To the extent that Plaintiff objects to the Court giving the jury the preliminary jury instructions regarding how to consider admissible evidence at the beginning of the trial, the objection is overruled. No later than February 28, 2023, Parties shall meet and confer and submit proposed additional stipulated facts. Court Reporter: Darlene Martinez. (ebuch) (Entered: 02/21/2023)
02/24/2023	129	MINUTE ORDER: After review of the Parties' proposed jury instructions and consideration of the Parties' arguments at the February 21, 2023 Trial Preparation Conference, the Court has compiled the attached Final Jury Instructions, which shall be the Final Jury Instructions submitted to the jury, subject to trial proceedings. By Judge Nina Y. Wang on 02/24/2023. Text Only Entry (nywlc2,) (Entered: 02/24/2023)
02/24/2023	130	OBJECTIONS to <i>Plaintiff's Exhibits</i> by Defendants Jonathan Dehn, Pueblo School District No. 60. (Schreiner, Michael) (Entered: 02/24/2023)
02/27/2023	131	OBJECTIONS to <i>Defendants' Exhibits</i> by Plaintiff Monica Acosta. (Gibson, Michelle) (Entered: 02/27/2023)
02/28/2023	132	Jury Instruction No. 2 - Additional Stipulations of Fact by Plaintiff Monica Acosta. (Dreyer, Sharyn) Modified on 2/28/2023 to correct text (trvo,). (Entered: 02/28/2023)
02/28/2023	133	RESPONSE to 132 Status Report by <i>Plaintiff re Jury Instruction No. 2 Additional Stipulations of Fact</i> by Defendants Jonathan Dehn, Pueblo School District No. 60. (Attachments: # 1 Exhibit A Email exchange)(Strachan, David) (Entered: 02/28/2023)
03/02/2023	134	Exhibit List <i>Parties' Joint Revised Exhibit List</i> by Defendants Jonathan Dehn, Pueblo School District No. 60. (Schreiner, Michael) (Entered: 03/02/2023)
03/02/2023	135	MINUTE ORDER: In light of the Parties' submissions as to additional stipulations of fact, <i>see</i> [Doc. 132; Doc. 133], a telephonic Status Conference is SET for 3/6/2023 at 11:00 AM before Judge Nina Y. Wang. The Parties shall participate using the following dial-in information: 888-363-4749; Access Code: 5738976# . By Judge Nina Y. Wang on 03/02/2023. Text Only Entry (nywlc2,) (Entered: 03/02/2023)
03/06/2023	136	COURTROOM MINUTES/MINUTE ORDER for Telephonic Status Conference held before Judge Nina Y. Wang on 3/6/2023. Court Reporter: Darlene Martinez. (ebuch) (Entered: 03/06/2023)
03/08/2023	137	Proposed Jury Instructions <i>Parties' redlined Jury Instruction No. 9</i> by Defendants Jonathan Dehn, Pueblo School District No. 60. (Strachan, David) (Entered: 03/08/2023)
03/13/2023	138	COURTROOM MINUTES for Jury Trial - Day 1 held before Judge Nina Y. Wang on 3/13/2023. Court Reporter: Darlene Martinez. (ebuch) (Entered: 03/14/2023)
03/13/2023	139	Jury Strike Sheet - Unredacted - Level 3 - Viewable by Court Only. (ebuch) (Entered: 03/14/2023)
03/13/2023	140	Jury Strike Sheet - Redacted. (ebuch) (Entered: 03/14/2023)
03/14/2023	141	COURTROOM MINUTES for Jury Trial - Day 2 held before Judge Nina Y. Wang on 3/14/2023. Court Reporter: Darlene Martinez. (ebuch) (Entered: 03/14/2023)
03/15/2023	142	COURTROOM MINUTES for Jury Trial - Day 3 held before Judge Nina Y. Wang on 3/15/2023. Defendants' Oral Motion Pursuant to Fed. R. Civ. P. 50 for Judgment as a Matter of Law with Respect to the Breach of Contract Claim is denied. Defendants' Oral Motion Pursuant to Fed. R. Civ. P. 50 for Judgment as a Matter of Law with Respect to

		the 5th Element of Garcetti test the First Amendment Retaliation Claim is denied. Court Reporter: Darlene Martinez. (ebuch) (Entered: 03/16/2023)
03/16/2023	143	COURTROOM MINUTES for Jury Trial - Day 4 held before Judge Nina Y. Wang on 3/16/2023. Lunches shall be provided to jurors during their deliberations starting on March 16, 2023. Jury Verdict is received. Judgment shall enter in favor of Defendants and against Plaintiff. Costs are awarded to Defendants. Court Reporter: Darlene Martinez. (ebuch) (Entered: 03/17/2023)
03/16/2023	144	Plaintiff's Witness List. (ebuch) (Entered: 03/17/2023)
03/16/2023	145	Defendants' Witness List. (ebuch) (Entered: 03/17/2023)
03/16/2023	146	Parties' Joint Exhibit List. (ebuch) (Entered: 03/17/2023)
03/16/2023	147	STIPULATION AND ORDER REGARDING CUSTODY OF EXHIBITS AND DEPOSITIONS, by Judge Nina Y. Wang on 3/16/2023. (ebuch) (Entered: 03/17/2023)
03/16/2023	148	Final Jury Instructions. (ebuch) (Entered: 03/17/2023)
03/16/2023	149	Jury Note. (ebuch) (Entered: 03/17/2023)
03/16/2023	150	Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (ebuch) (Entered: 03/17/2023)
03/16/2023	151	JURY VERDICT - Redacted. (ebuch) (Entered: 03/17/2023)
03/17/2023	152	FINAL JUDGMENT in favor of Defendants Pueblo School District No. 60 and Jonathan Dehn and against Plaintiff Monica Acosta pursuant to 151 Special Verdict Form, by Clerk on 3/17/2023. (ebuch) (Entered: 03/17/2023)
03/31/2023	153	Proposed Bill of Costs by Defendants Jonathan Dehn, Pueblo School District No. 60. (Attachments: # 1 Exhibit A Itemization of Costs, # 2 Exhibit A-1 Removal filing fees, # 3 Exhibit A-2 Invoice5761 Acosta depo transcript, # 4 Exhibit A-3 Invoice 5844 Rodriguez depo transcript, # 5 Exhibit A-4 Invoice 5847 Decesaro, Horton, Dehn depo transcripts, # 6 Exhibit A-5 Invoice 5884 Anderson depo transcript, # 7 Exhibit A-6 McDonald witness fees, # 8 Exhibit A-7 Horton witness fees, # 9 Exhibit A-8 Dehn witness fees, # 10 Exhibit A-9 Decesaro witness fees)(Strachan, David) (Entered: 03/31/2023)
04/19/2023	154	NOTICE by Clerk re 153 Proposed Bill of Costs. As set in the Proposed Bill, the hearing for this matter will be held on May 2, 2023 at 9:00 a.m. MST. The hearing will be held IN PERSON - the parties are directed to have counsel asserting the Proposed Bill of Costs and opposing counsel presenting objections be physically present for the hearing. The location of the hearing is to be determined, parties will be notified no later than April 26, 2023 of the hearing location in either the Arraj Courthouse or the Rogers Courthouse. The Clerk reminds the parties that a Statement of Conferral must be filed no later than the close of business of the clerk's office at 5:00 p.m. (Mountain Time) the day before the hearing in order to confirm the attempts to reach a settlement on either some or all of the requested costs, per local rules LCivR 54.1 and 77.1, and to confirm the parties have utilized the Clerk's Guide to Bills of Cost Hearings (see attached) in their discussions. Failure to file a Statement of Conferral by the close of business the day before the hearing will result in the Bill of Costs being summarily denied and the hearing will be vacated. Finally, the Clerk strongly encourages the parties to reach an agreement as to individual costs items - or preferably - a global settlement, in light of the Rule One directive that the court and PARTIES work to secure the just, speedy, and inexpensive determination of every action and proceeding. (ashee) (Entered: 04/19/2023)

04/25/2023	155	NOTICE by Clerk re 154 As set in the Proposed Bill, the hearing for this matter will be held on May 2, 2023 at 9:00 a.m. MST. The hearing will be held IN PERSON - the parties are directed to have counsel asserting the Proposed Bill of Costs and opposing counsel presenting objections be physically present for the hearing. The hearing will be held in Courtroom C401 (4th floor) of the Byron Rogers U.S. Courthouse, 1929 Stout Street, Denver [NOT the Arraj Courthouse]. The Clerk reminds the parties that a Statement of Conferral must be filed no later than the close of business of the clerk's office at 5:00 p.m. (Mountain Time) the day before the hearing in order to confirm the attempts to reach a settlement on either some or all of the requested costs, per local rules LCivR 54.1 and 77.1, and to confirm the parties have utilized the Clerk's Guide to Bills of Cost Hearings (see attached) in their discussions. Failure to file a Statement of Conferral by the close of business the day before the hearing will result in the Bill of Costs being summarily denied and the hearing will be vacated. Finally, the Clerk strongly encourages the parties to reach an agreement as to individual costs items - or preferably - a global settlement, in light of the Rule One directive that the court and PARTIES work to secure the just, speedy, and inexpensive determination of every action and proceeding. (ashee) (Entered: 04/25/2023)
05/01/2023	156	STIPULATION re 153 Proposed Bill of Costs,, by Defendants Jonathan Dehn, Pueblo School District No. 60. (Strachan, David) (Entered: 05/01/2023)
05/01/2023	157	Costs Taxed by Clerk in the amount of \$3,407.51 against Plaintiff Acosta and in favor of Defendants Pueblo School District No. 60 and Jonathan Dehn. Costs awarded pursuant to the parties' Stipulation, Docket no. 156. Accordingly, the hearing set for May 2, 2023 is VACATED. (ashee) (Entered: 05/01/2023)

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